

25STCV05303 25STCV05303

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Case Number: 25STCV05303 Hearing Date: August 6, 2026 Dept: 514

Aguado v. Luong

25STCV05303

Defendant's Motion for Terminating and Monetary Sanctions

Tentative

Ruling

The motion is denied.

Background

On February 25, 2025, Carlos Moya Aguado ("Plaintiff") filed a complaint against Phuong Bao Luong ("Defendant") and Does 1 through 25 for motor vehicle negligence and general negligence arising out of a vehicle accident occurring on December 28, 2023.

On March 18, 2025, Defendant filed an answer.

On September 19, 2025, the Court granted Defendant's motions to compel Plaintiff to provide initial responses to form interrogatories, special interrogatories, and requests for production. The Court also ordered Plaintiff to pay monetary sanctions to Defendant in the amount of \$1,000.

On November 6, 2025, Defendant filed a motion for terminating sanctions and additional monetary sanctions. On January 22, 2026, the Court granted the request for monetary sanctions in part and denied the request for terminating sanctions.

On April 15, 2026, Defendant filed this renewed motion for terminating sanctions. Plaintiff filed an opposition on July 23, and Defendant filed a reply on July 30.

The hearing was initially scheduled for June 11 and was continued by the Court to August 6.

Trial is set for May 3, 2027.

Legal Standard

When a plaintiff fails to obey an order compelling answers to interrogatories, “the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2030.290, subd. (c).)

When a plaintiff fails to obey an order compelling responses to requests for production, “the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2031.300, subd. (c).)

In Chapter 7 of the Civil Discovery Act, section 2023.030 provides for monetary, evidence, issue, and terminating sanctions for any “misuse of the discovery process,” “[t]o the extent authorized by the chapter governing any particular

discovery method or any other provision of this title.” A “misuse of the discovery process” is defined to include (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

The Civil

Discovery Act provides for an escalating and “incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) Discovery sanctions should be appropriate to and commensurate with the misconduct, and they “should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) “If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (Ibid.; see also, e.g., Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

Terminating

sanctions should be used sparingly. (Doppes, supra, 174 Cal.App.4th at p. 992; R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal. App. 4th 486, 496.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure, a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” (Lopez, supra, 246 Cal.App.4th at p. 604.) But where discovery violations are “willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Doppes, supra, 174 Cal.App.4th at p. 992.) Repeated and willful violations of discovery orders that prejudice the opposing party may warrant a terminating sanction. (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702; Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390; Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327; Lang v. Hachman (2000) 77 Cal.App.4th 1225, 1246; Collisson X Kaplan

v. Hartunian (1994) 21 Cal.App.4th 1611, 1617-1622.)

The primary purpose of discovery sanctions is to obtain compliance with the Civil Discovery Act and the Court's orders. It is not to punish. (Newland v. Super. Ct. (1995) 40 Cal.App.4th 608, 613; Ghanooni v. Super Shuttle of Los Angeles (1993) 20 Cal.App.4th 256, 262.) A discovery sanction should not create a "windfall" for a party or place a party in a better position than it would have been if the opposing party had simply complied with its obligations under the Court's orders and the Civil Discovery Act. (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194; see also 2 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026), ¶¶ 8:2214-2220.)

It is "never justified" for a court to impose a terminating sanction "solely because of a failure to pay a monetary discovery sanction." (Newland, supra, 40 Cal.App.4th at p. 615.)

Request for
Judicial Notice

Defendant asks the Court to take judicial notice of (1) Plaintiff's summons and complaint, (2) Defendant's answer, (3) Defendant's moving papers to compel Plaintiff's responses to Form Interrogatories, Set No. One, Demand for Production of Documents, Set No. One, and Special Interrogatories, Set No. One, and (4) the Court's September 19, 2025 Minute Order. The request is granted.

Discussion

On September 19, 2025, the Court ordered Plaintiff to serve responses to form interrogatories, special interrogatories, and requests for production within 20 days. Plaintiff was also ordered to pay sanctions in the amount of \$1,000. Plaintiff's counsel was present at the hearing and waived notice.

At the time this motion was filed, Plaintiff had not provided the required discovery responses

and had not paid the sanctions ordered by the Court. (Bretoi Decl., ¶¶ 16-25, 29, 33.)

Defendant now seeks an order for terminating sanctions as well as additional monetary sanctions.

Terminating
Sanctions

Plaintiff has failed to comply with his obligations under the Civil Discovery Act to respond to Defendant's discovery requests. Plaintiff has further violated a Court Order requiring him to respond to the discovery.

This is a serious misuse of the discovery process. If the violations are willful, serious sanctions are warranted for this misconduct.

For the Court to order terminating sanctions, however, a party must present evidence of repeated and willful misuse of the discovery process, as well as evidence that less severe sanctions have not (or likely will not) lead to compliance with the discovery rules. Here, however, Plaintiff presents evidence that his counsel has been suffering from significant physical and mental health issues during the past 18 months. (Kim Decl., ¶ 5.) Verified responses were served to the form interrogatories in January, to the special interrogatories in June, and to the demand for production in July. (Kim Decl., ¶ 6.) Supplemental responses to form interrogatories and requests for production were also provided in July. (Kim Decl., ¶ 7.) Plaintiff was deposed in May. (Kim Decl., ¶ 8.) Plaintiff's counsel has also paid some of the sanctions and is encountering financial difficulties, in part because of his health conditions have interfered with his ability to work. (Kim Decl., ¶ 9.)

Under these circumstances, the Court finds that Plaintiff's misuse of the discovery process was not willful. To the contrary, the failures to comply were largely the result of the significant health issues that have affected his counsel.

The request for
terminating sanctions is denied.

Monetary
Sanctions

In addition,
Defendant moves for an order requiring Plaintiff and his counsel to pay
monetary sanctions to Defendant under the Civil Discovery Act and to the Court
under Code of Civil Procedure section 177.5.

The requests for monetary
sanctions are denied. Under all of the
circumstances, the Court finds that the imposition of sanctions against
Plaintiff and/or his counsel would be unjust.

Conclusion

The Court DENIES the
motion for sanctions filed by Defendant Phuong Bao Luong.

Moving party is
ordered to give notice.